HM Revenue & Customs

Memorandum of Understanding (Process)

between

HMRC Customer Compliance Group

and

Trading Standards authority for London Borough of Camden

for

The exchange of information to facilitate sanctions under The Tobacco Products (Traceability and Security Features) Regulations 2019

The process MoU register ID / reference is: Click or tap here to enter text.

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1. Participants to the MoU

HM Revenue & Customs are referred to as Participant 1 and **[Insert name of OGD / PSB]** are referred to as Participant 2. Collectively they are referred to as the "Participant(s)".

1.1	**Participant 1 - HM Revenue & Customs**	
His Majesty's Revenue & Customs, of 100 Parliament Street, London, SW1A 2BQ		
	Contact 1	Contact 2
HMRC Directorate	Customer Compliance Group (CCG) Fraud Investigation Service (FIS)	Customer Compliance Group (CCG) Individuals and Small Business Compliance (ISBC)
Name of business contact	Business Lead for FIS	Business lead for ISBC
Role	Operational policy and casework	Operational policy and casework
Email address		
Telephone Number		
1.2	**Participant 2 – Local Authority Trading Standards**	
Enter registered address here London Borough of Camden 5 Pancras Square London N1C 4AG		
	Contact 1	Contact 2
Local authority section	Public Protection and Licensing	Public Safety
Name of business contact	[redacted]	Jamie Akinola
Role	Public Protection and Licensing Manager	Director of Public Safety
Email address	[redacted]	Jamie.akinola@camden.gov.uk
Telephone Number	[redacted]	[redacted]

2. Introduction

2.1 This MoU sets out the information sharing arrangement between the aforementioned Participants. For the context of this MoU 'information' is defined as a collective set of Data and/or facts that when shared between the Participants through this MoU will support the Participants in delivering the Purpose of the data sharing activity described in section 3 below.

2.2 Information will only be exchanged where it is lawful to do so. The relevant legal bases are detailed within this agreement. It should be noted that 'exchange covers all transfers of information between the participants, including where one participant has direct access to information or systems in the other.

2.3 This MoU is not intended to be legally binding. It documents the respective roles, processes, procedures, and agreements reached between HM Revenue & Customs and the Participants. This MoU should not be interpreted as removing, or reducing, existing legal obligations or responsibilities of each Participant, for example as Controllers under the UK General Data Protection Regulations (UK GDPR).

2.4 A glossary of terms, definitions of abbreviations of this MoU are detailed in Annex A of this MoU.

3. Purpose and benefits of the data sharing agreement

3.1 Describe the purpose of the MoU and HMRC's view of why it is necessary and proportionate.

This Memorandum of Understanding (MoU) sets out the arrangements for the exchange of information between His Majesty's Revenue and Customs (HMRC) and local authority Trading Standards teams, in relation to breaches of Reg.6(1) of the Tobacco Products (Traceability and Security Features) Regulations 2019, as amended, for the purposes of the application by HMRC of a new range of sanctions against persons found in possession of the non-compliant product.

The legal gateway set out in Reg.24(A)(2) of the 2019 Regulations, as amended, allows Trading Standards to share their information with HMRC, for investigation, leading to issue of penalties and other sanctions directly related to the Tobacco Track & Trace system.

This MoU is not a contract or intended to create legally binding obligations, but documents agreed joint working for HMRC and Trading Standards teams in local authorities, who undertake illicit tobacco enforcement activity.

Both parties are engaged in activity aimed at disrupting illicit acquisition and trade. This initiative is an additional tool to identify those involved and instigate penalties on non-compliant persons, which otherwise results in significant shortfall to HM Treasury of expected revenues from tobacco duty.

It provides a framework for HMRC and Trading Standards to work together against the illegal tobacco trade to help both organisations deliver their strategic objectives.

It enables Trading Standards to collect and share information in relation to tobacco offences in England, Wales and Scotland and sets out agreed operational and information sharing procedures.

HMRC can then use information received from Trading Standards to investigate further and consider applying new sanctions available under the legislation outlined in part 9 below.

It further enables HMRC to share information with Trading Standards, regarding issue of those sanctions in order to inform their subsequent enforcement activity in line with the escalating sanctions model.

This agreement also recognises the need for Trading Standards officers to directly access the system which holds information about the inclusion of businesses registered for UK Tobacco Track & Trace. This information is owned by HMRC but held on 3rd party platform, Dentsu Tracking, to which any authorised officers with a need for that information will be granted access.

HMRC considers that the disclosure of information between Trading Standards and HMRC is necessary and proportionate because HMRC requires the specified information to use as evidence in the issue of civil sanctions under the new legislation.

HMRC and Trading Standards consider that the disclosure of information between HMRC and Trading Standards is necessary and proportionate because Trading Standards need to be aware of the status of previous referrals before executing further enforcement events at the same premises and businesses.

While this agreement details the procedures to be followed for Trading Standards and HMRC to lawfully exchange information, it does not create a legal means for any disclosures of information. This is contained within Section 93 of Finance Act 2022 [now Section 8JC of The Tobacco Products Duty Act 1979].

3.2 What are the specific aims of the data sharing agreement?

From 20 July 2023, additional sanctions were introduced by way of The Tobacco Products (Traceability and Security Features) (Amendment) Regulations 2023 to tackle those involved in the supply of illicit tobacco by allowing evidence gathered by Trading Standards which identifies breaches of the Track & Trace system to be submitted to HMRC.

HMRC will administer the tobacco sanctions, using evidence provided by Trading Standards from their investigation activity. To enable that data sharing to take place, a new legal gateway has been created and this MoU sets out how it will be used.

The policy will be evaluated after an initial 18-month period to ensure it meets the needs of both HMRC and Trading Standards in furthering the policy aim of increasing the effectiveness of existing HMRC/TS joint working to deter and disrupt the illicit tobacco sector by enhanced collaboration and robust enforcement of the new sanctions.

3.3 How will the data being shared help achieve those aims?

Trading Standards to HMRC
Data supplied by Trading Standards to HMRC will be used by HMRC to allow caseworkers to make decisions regarding the issuing of penalties, the size of the penalty and any other relevant sanction, such as removal of the Tobacco Track & Trace Economic Operator ID (EOID), that may be appropriate in accordance with the applicable sanctions.

The respective roles of Trading Standards (TS) as the experts in retail level enforcement action and HMRC as the post detection activity in these interventions allows each to use and build on their strengths whilst working collaboratively towards the same aim of promoting an effective deterrent and applying escalating sanctions where continued non-compliance is detected.

HMRC to Trading Standards
As well as allowing Trading Standards to be able to monitor the effectiveness of the policy at street level, the outcome of HMRC casework will also inform the intelligence which feeds through the existing Operation CeCe joint intelligence sharing arrangement. This will allow TS to refine their operational activity and identify areas of illicit tobacco activity and repeat offenders who will be subject to an escalating sanction in accordance with the sanctions model.

3.4 Describe the benefits that the Participants hope to bring to individuals or society or the wider impact e.g. reduction in fraud and debt, supports UK economy, benefits HMRC customers etc

The majority of retailers are law abiding. However, there are those who believe they can make easy money by selling illicit tobacco products. In addition to significant revenue loss, illicit tobacco products undermine public health policy to reduce smoking prevalence.

Trade in illicit tobacco makes cheaper tobacco more readily available to the young and vulnerable and takes trade away from legitimate businesses.

Illicit tobacco products are sold covertly through a variety of outlets. This creates a completely unregulated distribution network and makes tobacco far more accessible to children.

This data sharing agreement, as outlined in section 3.1, uses the existing expertise of Trading Standards together with the regulatory powers of the Tobacco Track & Trace system to support ongoing strategies to attack the illicit market at all levels. The significant financial penalties and threat of exclusion from the TT&T system for those who sell legitimate and illicit products should act as a strong deterrent and clear message that even holding smaller quantities of illicit cigarettes and hand rolling tobacco will result in a robust response.

4. Type of data being shared under this agreement

The Data Protection Glossary provides definitions of personal data and business data.

4.1 Does this MoU agreement involve the exchange of Personal Data?	
Yes ☒ (Go to section 5)	No ☐ (Select 'N/A – No Personal data' for Sections 5 to 7 and go to Section 8)

5. Data Protection Impact Assessment (DPIA)

☐ N/A - No Personal Data

5.1 HMRC - Have you completed a Data Protection Impact Assessment (DPIA)?		
Yes ☒	DPIA Reference Number:	3724
	Date DPIA was registered:	15/05/2023
	Date DPIA was last reviewed:	02/09/2024
No ☐	***Please ensure a DPIA is completed before you exchange any personal data. You will not be authorised to transfer data until one has been completed.***	

5.2 Participant 2 - Have you completed a Data Protection Impact Assessment (DPIA)?		
Yes ☒	DPIA Reference Number:	DP24_577
	Date DPIA was registered:	Click or tap to enter a date.
	Date DPIA was last reviewed:	Click or tap to enter a date.
No ☐	***Please ensure a DPIA is completed before you exchange any personal data.***	

6. Relationships under UK GDPR in respect of any personal data being exchanged under this agreement

☐ N/A – No Personal Data

See DCMS Guidance at Annex B below for further information on relationship types under UK GDPR

6.1 Status of HMRC under UK GDPR
HMRC will be disclosing and receiving personal data under this agreement as a data controller. Where personal data is being disclosed under this agreement, HMRC's status will be a controller because HMRC separately determines the purpose and means of the processing of the personal data. Where personal data is being received under this agreement, HMRC's status will be a controller because HMRC separately determines the purpose and means of the processing of the personal data after transfer.

6.2 Status of **Participant 2** under UK GDPR
Participant 2 will be disclosing and receiving personal data under this agreement. Where personal data is being received under this agreement, Participant 2 status will be a joint controller because they jointly with HMRC determine the purpose and means of the processing of personal data. Where personal data is being disclosed under this agreement, Participant 2 status will be a controller because they separately determine the purpose and means of the processing of the personal data.

7. Handling of Personal Data and Security

☐ N/A – No Personal Data

7.1 Where Participants bear the responsibility of a Data Controller (see Section 6.1 and 6.2), they must ensure that any personal data received pursuant to this MoU is handled and processed in accordance with the current seven UK GDPR principles.

7.2 Additionally as part of the Government, HM Revenue & Customs and Participant 2 must process personal data in compliance with the mandatory requirements set out in HM Government Security Policy Framework guidance issued by the Cabinet Office when handling, transferring, storing, accessing or destroying Information assets.

7.3 Participants must ensure effective measures are in place to protect personal data in their care and manage potential or actual incidents of loss of the personal data. Such measures will include, but are not limited to:

- personal data should not be transferred or stored on any type of portable device unless absolutely necessary, and if so, it must be encrypted, and password protected to an agreed standard;
- Participants will take steps to ensure that all staff involved in the data sharing activities are adequately trained and are aware of their responsibilities under the DPA, UK GDPR and this MoU;
- access to personal data received by Participants pursuant to this MoU must be restricted to personnel on a legitimate need-to-know basis, and with security clearance at the appropriate level and
- Participants will comply with the Government Security Classifications Policy (GSCP) where applicable.

8. Duration, Frequency and Volume of the data sharing (To be completed by HMRC)

Date MoU comes into effect:	01/09/2023
Date by which MoU needs to be formally reviewed:	01/04/2025
Date MoU will cease to be valid:	01/06/2025
Frequency & Volume of data being shared:	Single case referral sheets with associated attachments, to be shared via individual email on a weekly basis. In the initial 18-month period, c530 referrals are expected from TS to HMRC. Following that, MoU to be reviewed and updated to reflect any change in actual volumes being shared.

9. Legal considerations and basis to share data between the Participants

9.1 HMRC has specific legislation within the Commissioners for Revenue and Customs Act (2005) which covers the confidentiality of information held by the department, when it is lawful to disclose that information and legal sanctions for wrongful disclosure. For HMRC, disclosure of information is precluded except in certain limited circumstances (broadly, for the purposes of its functions, where there is a legislative gateway or with customer consent). Unlawful disclosure relating to an identifiable person constitutes a criminal offence. The criminal sanction for unlawful disclosure is detailed at section 19 of the Commissioners for Revenue and Customs Act 2005.

9.2 Data can only be shared where there is a legal basis for the exchange and for the purposes described in this MoU as specified at Section 10 below. No data should be exchanged without a legal basis and all exchanges must comply with our legal obligations under both the Data Protection Act 2018 and Human Rights Act (HRA) 1998.

9.3 Enter relevant legal basis / bases for HMRC to disclose data

Tobacco Products Duty Act 1979 is amended by insertion of section 8JC by virtue of the Finance Act 2022 section 93:-

8JC Tracing and security: disclosure of information
(1) The Commissioners (or anyone acting on their behalf) may, for a purpose within subsection (3), disclose information to—
(a) a person on whom functions have been conferred by or under tracing and security regulations or relevant existing law;
(b) an authorised officer of such a person.

(2) A person mentioned in subsection (1)(a) or (b) may, for a purpose within subsection (3), disclose information to the Commissioners (or anyone acting on their behalf).

(3) A purpose is within this subsection if it is connected with—
(a) a function conferred by or under tracing and security regulations or relevant existing law, or
(b) the enforcement of a restriction or requirement imposed by or under tracing and security regulations or relevant existing law.

(4) A person who receives information as a result of subsection (1) may not—
(a) use the information for a purpose other than a purpose within subsection (3), or
(b) further disclose the information,
except with the consent of the Commissioners (which may be general or specific).

(5) If—
(a) a person discloses information in contravention of subsection (4)(b), and
(b) the information relates to a person whose identity is specified in, or can be deduced from, the disclosure,
section 19 of the Commissioners for Revenue and Customs Act 2005 (offence of wrongful disclosure) applies in relation to that disclosure as it applies in relation to a disclosure of information in contravention of section 20(9) of that Act.

(6) Nothing in this section authorises the making of a disclosure which would—
(a) contravene the data protection legislation, or
(b) prohibited by the investigatory powers legislation.
In determining whether a disclosure would do either of those things, the powers conferred by this section are to be taken into account.

(7) In subsection (6)—

"the data protection legislation" has the same meaning as in the Data Protection Act 2018 (see section 3 of that Act);
"the investigatory powers legislation" means Parts 1 to 7 and Chapter 1 of Part 9 of the Investigatory Powers Act 2016.

(8) Nothing in this section limits the circumstances in which information may be disclosed under section 18(2) of the Commissioners for Revenue and Customs Act 2005 or under any other enactment or rule of law.

(9) References in this section to an authorised officer of any person are to any person who has been designated by the principal as a person to and by whom information may be disclosed by virtue of this section."

Further regulations are made in **The Tobacco Products (Traceability and Security Features) (Amendment) Regulations 2023** relating to the extent of the sanctions, who will be affected and further detail of the application of the relevant sanctions. These regulations were made using the provisions of Section 93 Finance Act 2022.

9.4 If applicable – Enter the relevant legal basis / bases for Participant 2 to disclose data

As per 9.3 and in addition The Consumer Rights Act 2015 (Enforcement) (Amendment) Order 2023 provides the basis for Trading Standards to investigate and therefore collect the data that will be disclosed: -
Amendment to the Consumer Rights Act 2015

2. In paragraph 11 of Schedule 5 to the Consumer Rights Act 2015 (enforcer's legislation: legislation mentioned in paragraph 9(1)(b)), in the table, after the entry relating to a London Borough Council, insert—

"A local weights and measures authority in Great Britain or a district council in Northern Ireland	Regulation 6(1) of the Tobacco Products (Traceability and Security Features) Regulations 2019 (S.I. 2019/594)".

10. Lawful basis under UK GDPR to process personal data

☐ N/A – No Personal Data

10.1 Personal data can only be processed (transferred, disclosed) where there is a valid lawful basis/bases as set out in Article 6 of UK GDPR – see ICO Guidance

10.2 Enter relevant lawful basis for HMRC to process (share) personal data

The basis for gathering the information in this activity is "Public task": the processing is necessary [for you] to perform a task in the public interest or for your official functions, and the task or function has a clear basis in law.
Article 6(1)(e) gives a lawful basis for processing where:
"processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller"

10.3 If applicable - Enter relevant lawful basis for Participant 2 to process (share) personal data

Additionally, Trading Standards teams are specifically supported in exchanging information in this activity by virtue of section 8JC Tobacco Products Duty Act 1979 as amended. Therefore, the basis for processing in this instance is public task as set out above.

11. Data to be shared and systems it will be derived from

11.1 Describe the types of data / data fields being shared and their source systems
Information being shared by TS to HMRC includes information collected, at the time of detection or during follow up enquiries, about premises, businesses and individuals who have been identified by Trading Standards as connected with the detection of illicit tobacco products which contravene the Tobacco Track & Trace regulations. This may include; full name, home address, date and place of birth of the owner/proprietor of the business, position within the business (if a limited company), and the same personal data of any other person on the premises who is a controlling mind, employee, and/or in control of the premises at the time of the seizure. This may also include passport and/or driver licence number(s) if it is possible to confirm their identity at the time. Information may include any references that identify a business or individual as registered with an ID as part of the Tobacco Track & Trace system for the legitimate supply of tobacco products. A referral template completed by Trading Standards will be shared by them with HMRC. The template contains sufficient information to allow a decision on referral by TS and acceptance for casework by HMRC. Other types of data being shared may include information from the UK Tobacco Track & Trace system data owned by HMRC and held on UK ID issuer Dentsu's system regarding ID numbers. This system is directly accessible by both HMRC & TS officers who have a need to access that data in order to verify that operator ID's and product unique identifiers are present and accurate. This information from TS is shared as evidence of breach of regulations. Officers may also access the Dentsu scanning mobile application to scan, view details of and verify the product ID codes on any tobacco products they suspect are not compliant with the TT&T regulations. Information will be shared back to the originating local authority TS team, regarding outcome of HMRC casework in order to inform future activity, both in terms of operational focus and monitoring/evaluation of the pilot period. This includes the date and amount of any penalty charged and the status or change in status of an Economic Operator ID holder.
11.2 What is the Government Security Classification for the data being shared?
The data in this exchange will initially be classified as Official Sensitive. However, the information which HMRC will provide to trading standards my fall within the scope of sensitive or law enforcement data under part 3 DPA 2018 Law enforcement processing. Where this is the case, trading standards will confirm that they will manage that data in line with its sensitivity.

11.3 Is there any special category data, sensitive data or criminal offence data being shared?	Yes ☐	No ☒
No special category data. No criminal offence data – these are civil sanctions based on non-compliance with TT&T regulations.		

12. How the data will be shared (to be completed by HMRC and where applicable OGD / PSB)

12.1 Describe the method by which data will be transferred under this agreement
Referral forms will be shared individually as email attachments and transmitted by secure email which requires no further password protection or encryption. Emails to exit Trading Standards teams within the relevant local authority from a nominated mailbox or individual. Emails will enter HMRC via the triage point which is toiccuktttreferrals@hmrc.gov.uk belonging to and operated by the Tobacco Operational Intelligence Co-ordination Centre. They will be logged on a spreadsheet and allocated a sequential unique reference number. The reverse process will operate for data shared from HMRC to Trading Standards which will be contained in an outcome email which will indicate a penalty level and/or EOID status of the subject subsequent to sanction. Personal data will not be shared at any HMRC/TS working group monitoring and evaluation discussions.

12.2 Will direct (or browser) access to HMRC systems be granted?	Yes ☒	No ☐

13. Accuracy of the data being shared

13.1 Before sharing data both Participants must take all reasonable steps to ensure that the data being shared is both accurate and up to date.

13.2 The exporting department will ensure that data integrity meets their own department's standards, unless more rigorous or higher standards are set out and agreed at the requirements stage.

13.3 Participants will notify each other of any inaccuracies of the data as they are identified.

14. Retention and Destruction of data

14.1 State how long the data will be retained for by each Participant and what their arrangements are for secure storage, and disposal / destruction of data.
In HMRC, referral forms and any associated attachments e.g., photographs, will be uploaded to Caseflow and the data will flow through to other HMRC systems and be retained in line with those systems i.e. NPPS and ETMP, IDMS. Original incoming emails will only be retained until the outcome of casework is known and communicated back to Trading Standards. All documents are to be in electronic format and will be retained in line with appropriate HMRC retention policies and deleted on review and assurance that they are no longer required e.g., in case or request for review or appeal. TS will retain this personal information on the owner/proprietor of the business for as long they continue to operate that business. By necessity, this is held as physical evidence and in electronic record form and it will be retained, and disposed of, in line with the prevailing evidential and data protection requirements set out in local authority procedures. With respect to the documentation associated with a Tobacco Track & Trace contravention referral, that will be kept until such times as the Trading Standards service is informed by HMRC that the matter has been disposed of by HMRC, whether or not a sanction is applied.

14.2 State what access controls each Participant will have in place to ensure access to the data will only be provided to authorised personnel with the appropriate security clearance.
All HMRC personnel involved in receipt, processing and casework deal with existing intelligence sharing and/or compliance casework and will hold appropriate security clearance. Email inbox access is limited to those who have a need to triage the data being shared and access to other HMRC systems is limited and appropriate to an individual's role. Access to evidence and data gathered by TS during criminal and civil investigations is restricted to TS and, as necessary, Legal Services staff, and only shared as permitted by law, particularly Part 9 of the Enterprise Act 2002 and the Data Protection Act 2018.

15. Onward disclosure to third parties

15.1 Participant 2 agrees to seek permission from HM Revenue & Customs before any onward disclosure of information to a third party and will only disclose any information if permission is granted.
15.2 Where permission for onward disclosure is granted by HMRC, describe how the onward transfer of information from Participant 2 to the third party will be handled (if allowed) under the legal basis
Where HMRC do give approval for further [onward] disclosure of HMRC information. Participant 2 organisations will ensure that transfer is undertaken using an appropriately secure mechanism agreed with HMRC. Where Participant 2 is compelled to disclose HMRC information under a legal obligation or an order of court, they do not need to ask permission, but they will inform HMRC that the data has been transferred to another third party.

16. Role of each Participant to the MoU

16.1 Role of HMRC (the following is the minimum expected of HMRC, but can be added to as necessary)
• To identify the appropriate data required by & from HM Revenue & Customs IT systems / records to fulfil the purpose of the data sharing • Receive the data from Participant 2 in **an agreed referral template along with any relevant attachments e.g. photographs, copy officer notebooks, copy correspondence,** transferred by secure **email** from and to the agreed contact points • Provide the data to Participant 2 in an agreed format to the agreed contact to fulfil their function. • Only to allow access to that data by the team(s) and personnel who require it to fulfil a function • Ensure that staff handle this data in line with the approved secure transfer method agreed by both departments and within HM Revenue & Customs data security instructions • To store the data only for as long as there is a business need to do so • Move, process and destroy data securely i.e. in line with the principles set out in HM Government Security Policy Framework, issued by the Cabinet Office, when handling, transferring, storing, accessing or destroying information. • Comply with the requirements in the Security Policy Framework, and in particular prepare for and respond to Security Incidents and to report any data losses, wrongful disclosures or breaches of security relating to information.

16.2 Role of Participant 2 (the following is the minimum expected of Participant 2, but can be added to as necessary)
• Identify and supply the appropriate data required from HM Revenue & Customs. • Only use the information for purposes that are in accordance with the legal basis under which it was received. • Only hold the data for as long as there is a business need to do so. • Ensure that only people who have a genuine business need to see the data will have access to it. • On despatch, store data received securely and in accordance with the prevailing central government standards, for example in secure premises and on secure IT systems. • Move, process and destroy data securely i.e. in line with the principles set out in HM Government Security Policy Framework, issued by the Cabinet Office, when handling, transferring, storing, accessing or destroying information. • Comply with the requirements in the Security Policy Framework, and in particular prepare for and respond to Security Incidents and to report any data losses, wrongful disclosures or breaches of security relating to information. • If Participant 2 adheres to a different set of security standards they must inform HMRC what these standards are at 16.3 below and comply with any additional security requirements specified by HMRC. • Seek permission from HM Revenue & Customs before onward disclosing information to a third party • Seek permission from HM Revenue & Customs if you are considering offshoring any of the personal data shared under this agreement. • Mark information assets with the appropriate government security classification and apply the baseline set of personnel, physical and information security controls that offer an appropriate level of protection against a typical threat profile as set out in Government Security Classifications, issued by the Cabinet Office, and as a minimum the top level controls framework provided in the Annexe – Security Controls Framework to the GSC. • **Where applicable** – Send the data in **agreed format as in 16.1** via secure email agreed by both departments under the protective marking 'Official-Sensitive' • Receive data relating to the outcome of referral compliance activity by HMRC and input to internal systems to inform future intelligence and enforcement activity.

16.3 If Participant 2 adheres to different security standards, please state what these standards are here.	N/A ☐
Each local authority in the UK has its own documented controls on data security governed by the same legislation as those HMRC policies set out above. Local authority officers receive regular training on these requirements.	

17. Monitoring and Reviewing and arrangements

17.1 This MoU relates to a regular exchange that must be reviewed annually to assess whether the MoU is still accurate and fit for purpose.

17.2 Reviews outside of the proposed review period can be called by representatives of either Participant. Any changes needed as a result of that review may be agreed in writing and appended to this document for inclusion at the formal review date.

17.3 Technical changes necessary to improve the efficiency of the exchange that do not change the overarching purpose can be made without the requirement to review formerly the MoU during its life cycle but must be incorporated at the formal review stage.

17.4 A record of all reviews will be created and retained by each Participant.

17.5 Appendix 2 outlines the contacts for amendments to the MoU. Appendix 1 sets out the document control, and the version history of the MoU.

18. Assurance Arrangements

18.1 HM Revenue & Customs has a duty of care to assure any data that is passed on to others. Processes covered by this MoU will be subject to annual reviews, from the date of sign off (to be inserted). HMRC may also choose to introduce ad hoc reviews.
Assurance will be provided by the annual completion of a Certificate of Review & Assurance. The assurance processes should include checking that any information sharing is achieving its objectives (in line with this MoU) and that the security arrangements are appropriate given the risks.

18.2 Participant 2 agrees to provide HM Revenue & Customs with a signed Certificate of Review & Assurance within the time limits specified upon request.

18.3 HMRC reserves the right to review the agreed risk management, controls, and governance in respect of this specific agreement.

19. Security Breaches, Security Incidents or loss or unauthorised disclosure of data

19.1 The designated points of contact (provided at Appendix 2 of this MoU) are responsible for notifying the other Participant in writing in the event of loss or unauthorised disclosures of information within 24 hours of the event.

19.2 The designated points of contact will discuss and agree the next steps relating to the incident, taking specialist advice where appropriate. Such arrangements will include (but will not be limited to) containment of the incident and mitigation of any ongoing risk, recovery of the information, and notifying the Information Commissioner and the data subjects. The arrangements may vary in each case, depending on the sensitivity of the information and the nature of the loss or unauthorised disclosure.

20. Subject Access Requests

20.1 In the event that a Subject Access Request (SAR) is received by either Participant they will issue a formal response on the information that they hold following their internal procedures for responding to the request within the statutory timescales. There is no statutory requirement to re-direct SARs or provide details of the other Participant in the response. However, each Participant will notify the other if a SAR is received in respect of any personal data shared under this agreement. Contact details are at Appendix 2.

20.2 Full details of Data subject's rights in relation to processing of personal information can be found in each Participant's Privacy Notice – links below. Also, see ICO Guidance.

20.3 HMRC	HMRC Privacy Notice
20.4 Participant 2	Data protection, privacy and cookies - Camden Council
20.5 ICO Guidance	ICO Data Sharing Code of Practice – The rights of individuals

21. Freedom of Information Act (FOI) 2000 or Freedom of Information (Scotland) Act 2002

21.1 Both Participants are subject to the requirements of the Freedom of Information Act (FoIA) 2000 and shall assist and co-operate with each other to enable each organisation to comply with their information disclosure obligations

21.2 In the event of one participant receiving an FoI request that involves disclosing information that has been provided by the other Participant, the organisation in question will notify the other to allow it the opportunity to make representations on the potential impact of disclosure.

21.3 All HMRC FoI requests must be notified to the Central HMRC FOI Team inbox

22. Issues, disputes, and resolution

22.1 Any issues or disputes that arise as a result of exchange covered by this MoU must be directed to the relevant contact points listed in Appendix 2. Each Participant will be responsible for escalating the issue as necessary within their given management structure.

22.2 Where a problem arises it should be reported as soon as possible. Should the problem be of an urgent nature, it must be reported by phone immediately to the designated business as usual contact (listed in Appendix 2) and followed up in writing the same day. If the problem is not of an urgent nature it can be reported in writing within 24 hours of the problem occurring.

23. Costs

23.1 Will there be a charge for this service?	Yes ☐	No ☒

24. Termination

24.1 This MoU may be terminated by giving three months' notice by either Participant.

24.2 Both Participants to this MoU reserve the right to terminate this MoU with three months' notice in the following circumstances:

- by reason of cost, resources, or other factors beyond the control of the HM Revenue & Customs or Participant 2
- if any material change occurs which, in the opinion of HM Revenue & Customs and Participant 2 following negotiation significantly impairs the value of the data sharing arrangement in meeting their respective objectives.

24.3 In the event of a significant security breach or other serious breach of the terms of this MoU by either Participant the MoU will be terminated or suspended immediately without notice.

24.4 In the event of a failure to cooperate in a review of this MoU or provide assurance the agreement may be terminated or suspended without notice.

25. Signatories

25.1 Signed on behalf of the HM Revenue & Customs:

I accept the terms of the Memorandum of Understanding on behalf of HM Revenue & Customs.

Signature:	HMRC will sign once the agreement(s) are signed by LA's	
Print Name:		
Date:	Click or tap to enter a date.	
Position:		
Contact details:	Tel no:	Email:

25.2 Signed on behalf of **Camden Trading Standards**

I accept the terms of the Memorandum of Understanding on behalf of **Camden Trading Standards**

Signature:		
Print Name:	Jamie Akinola	
Date:	14/10/2024	
Position:	Director Public Safety	
Contact details:	Tel no: 02079744819	Email: Jamie.akinola@camden.gov.uk

25.3 Additional Signatories if the agreement is between multiple organisations ☒ Check if N/A

I accept the terms of the Memorandum of Understanding on behalf of

Signature:		
Print Name:		
Date:	Click or tap to enter a date.	
Position:		
Contact details:	Tel no:	Email:

26. Appendices and Annexes

26.1 Appendix 1 – Document Control

Document Control Personnel

Key Personnel	Organisation	Name	Department
Author	HMRC	[redacted]	CS&TD Indirect Tax
	Participant 2		
Approver	HMRC	[redacted]	CS&TD Indirect Tax
	Participant 2		
Review Control	HMRC		
	Participant 2		

Version history

Version	Date	Summary of changes	Changes Marked
0.1	07/03/2023	Initial Draft	No
0.2	11/04/2023	Updated following SIBP review	Yes
0.3		Further internal review – awaiting SIBP input	No
0.4		Tobacco Policy G6 review – pending SIBP response to questions/comments	No
0.5	20/06/23	Updated and amended following TS and further internal review & pending SIBP response to questions/comments	No
0.6	30/07/23	Updated following Herts CC/Scottish TS review comments and some SIBP comments	Yes
1.0	08/08/2023	Final Version	No

Review dates

Version	Publication date	Review date

26.2 Appendix 2 – Business Contacts

a) Business as Usual Contacts – HMRC

Contact	Email	Responsibility
Tobacco Operational Intelligence & Control Centre (TOICC)	toiccuktttreferrals@hmrc.gov.uk	Operational Queries
Tobacco Track & Trace Team	tobaccotracktraceteam@hmrc.gov.uk	Track & Trace system issues
Tobacco Track and Trace Sanctions Team	tobaccotrackandtracesanctions@hmrc.gov.uk	Return email for MoU from Local Authorities
Information Policy & Disclosure	ipd.disclosure (CS&TD TAD)	Legal Issues
[redacted]	[redacted]	Review and amendments to MoU
[redacted]	[redacted]	Review and amendments to MoU
SIBP	Insert email address of contact [TBC]	Security Incidents
ISBC SAR Mailbox	lc.dpa@hmrc.gov.uk	Subject Access Requests (SAR's)
Solicitors Office and Legal Services – FOI Team	Central HMRC FOI Team inbox	Freedom of Information
HMRC Office of the Data Protection Officer	DPO Office, Mailbox (CSIR DPO)	Advice on data protection issues e.g. GDPR, DPA 2018
[redacted]	[redacted]	Tobacco Track & Trace Sanctions Policy Lead

b) Business as Usual Contacts – Local Authority Trading Standards

Contact	Email	Responsibility
[redacted] Trading Standards Team Leader	[redacted]	Operational Queries
[redacted]	S[redacted]	Operational Queries
[redacted]	[redacted]	Legal Issues
[redacted]	[redacted]	Review and amendments to MoU
[redacted]s	**DPA@camden.gov.uk**	Data protection matters including Breaches, Security Incidents & Subject Access Requests (SAR's)
[redacted]	**FOI@camden.gov.uk**	Freedom of Information

26.3 Annexes

Annex Ref	Description	Document
Annex A	Glossary of Terms and Abbreviations	Annex A.docx
Annex B	DCMS Guidance on Controller relationships	Annex B.docx
Annex C	Instruction on how to add 'Go to TOC' (Table of Contents) button	Annex D.docx